

Before the
FEDERAL MARITIME COMMISSION
Washington, D.C. 20573
Docket No. 23-02
BED BATH & BEYOND INC. v.
ORIENT OVERSEAS CONTAINER LINE LIMITED AND OOCL (EUROPE) LIMITED

NOTICE OF SUPPLEMENTAL AUTHORITY

Attached as Exhibit A hereto, without argumentation, is a copy of the recently issued decision of the United States Court of Appeals for the District of Columbia Circuit in *MSC Mediterranean Shipping Company S.A. v. Federal Maritime Commission*. This decision is relevant to the briefing in the above-captioned matter.

Dated: June 24, 2025

Respectfully submitted,

HUTH REYNOLDS LLP

/s/ J. Lee Hill

Matthew J. Reynolds

(646) 872-9353

reynolds@huthreynolds.com

Karl C. Huth

(212) 731-9333

huth@huthreynolds.com

Gregory A. Crapanzano II

(917) 575-3440

gcrapanzano@huthreynolds.com

J. Lee Hill

(405) 826-3226

lhill@huthreynolds.com

Jie Shi

(615) 739-4956

jshi@huthreynolds.com

Jack Mitchell

(845) 803-3655

jmitchell@huthreynolds.com

41 Cannon Court

Huntington, NY 11743

*Counsel for Complainant 20230930-DK-
Butterfly-1, Inc., f/k/a Bed Bath & Beyond Inc.*

Certificate of Service

I hereby certify that I have this day served the foregoing document upon Respondents Orient Overseas Container Line Limited and OOCL (Europe) Limited by emailing copies of the document to their counsel of record listed below:

Matthew Thomas
Keith B. Letourneau
BLANK ROME LLP
1271 Avenue of the Americas
New York, NY 10020
(212) 885-5348
Matthew.Thomas@BlankRome.com
Keith.Letourneau@BlankRome.com

Rebecca A. Fenneman
Eric C. Jeffrey
JEFFREY/FENNEMAN LAW + STRATEGY, PLLC
700 12th St., NW, Suite 700
Washington, DC 20005
RFenneman@JeffreyFenneman.com
EJeffrey@JeffreyFenneman.com

Counsel for Respondents Orient Overseas Container Line Limited and OOCL (Europe) Limited

Dated: June 24, 2025

/s/ J. Lee Hill

J. Lee Hill

*For Complainant 20230930-DK-Butterfly-I,
Inc., formerly known as Bed Bath & Beyond Inc.*